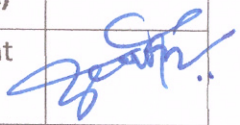
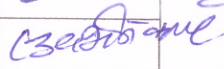
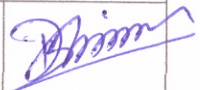
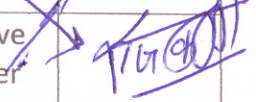
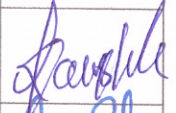
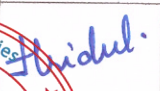


Annexure -1

Memorandum of Association of "Green Power Residents' Welfare Association (Green Power Residency)"

Sr. No	Subject	Description
1	Name of the Society	Green Power Residents' Welfare Association (Green Power Residency)
2	The registered office of the Society shall be at:	Site-1 of SLF Anushree Apartments, Sector-75, Faridabad -121004 (Haryana).
3	Jurisdiction	The RWA shall carry out its major activities in the Faridabad District within the territory of State of Haryana.
4	Aims and Objects of the RWA	The aims and objectives of "Green Power Residents' Welfare Association, Site-1 of SLF Anushree Apartments, Sector-75, Faridabad - 121004" could be as mentioned under Clause No.4 (Sl. No.4.1. to 4.21) of Chapter-I of the Bye Laws of the Association. All the members of the "Green Power Residents' Welfare Association (Green Power Residency), Sector-75, Faridabad – 121004" are liable to follow the aims and objects of the Association. To do all things necessary or / and otherwise provide for the attainment of the objects specified in the bye-laws. The Association shall not act beyond the scope of its aims and objects without suitably amending the provisions of its bye-laws for the purpose.
5	The names of the Governing Body and Executive Members of the RWA to which the rules and bye-laws of the society is entrusted are as under:	

Governing Body and Executive Members of the RWA :

Sr. No.	Name	Address	Designation (in RWA)	Signature
1	Sh. Ashok Mehta	A4/18B, Green Power Residency, Sector-75, Faridabad-121004	President	
2	Sh. Sajan Moideen	A3/5B, Green Power Residency, Sector-75, Faridabad-121004	Sr. Vice President	
3	Sh. Sudarshan Kumar	A4/10B, Green Power Residency, Sector-75, Faridabad-121004	Vice President	
4	Sh. G L Meena	A3/4C, Green Power Residency, Sector-75, Faridabad-121004	General Secretary	
5	Sh. Manoranjan Behera	A3/16A, Green Power Residency, Sector-75, Faridabad-121004	Joint Secretary	
6	Sh. Kamlesh Dhiman	A4/12C, Green Power Residency, Sector-75, Faridabad-121004	Treasurer	
7	Sh. R K Yadav	A4/12D, Green Power Residency, Sector-75, Faridabad-121004	Executive Member	
8	Sh. Sudhir Kumar Padhi	A3/3B, Green Power Residency, Sector-75, Faridabad-121004	Executive Member	
9	Sh. K M Mishra	A3/3C, Green Power Residency, Sector-75, Faridabad-121004	Executive Member	
10	Sh. Navneet Dass Bathri	A4/15C, Green Power Residency, Sector-75, Faridabad-121004	Executive Member	
11	Sh. P K Kaushik	A3/3A, Green Power Residency, Sector-75, Faridabad-121004	Executive Member	
12	Sh. Sanju Bisla	A3/17A, Green Power Residency, Sector-75, Faridabad-121004	Executive Member	
13	Mrs. Seema Verma	A4/16B, Green Power Residency, Sector-75, Faridabad-121004	Executive Member	
14	Mrs. Mridul Singh	A4/9C, Green Power Residency, Sector-75, Faridabad-121004	Executive Member	



BYE-LAWS OF GREEN POWER RESIDENTS' WELFARE ASSOCIATION

CHAPTER-I

1. SHORT TITLE AND APPLICATION

1.1 NAME OF SOCIETY: GREEN POWER RESIDENTS' WELFARE ASSOCIATION, SECTOR-75, FARIDABAD-121004 (HARYANA).

1.2 The Registered Office of the Society shall be at Stilt Area, Site-1 of M/s SLF Anushree Apartments, Sector-75, Faridabad -121004 (Haryana).

1.3 The Society shall carry out its major activities in the Faridabad District within the territory of State of Haryana.

1.4 These bye-laws shall be called the Bye-laws of the "Green Power Residents' Welfare Association" or may be referred to as "GREEN POWER RESIDENCY" bye-laws.

1.4.1 The provisions of these by-laws apply to GREEN POWER RESIDENCY.

1.4.2 All present or future owners, tenants or their employees or any other person that might use the facilities of the building/buildings in any manner are subject to the regulations set forth in these bye-laws.

1.4.3 The mere acquisition or rental or taking licence/ lease of any of the independent Flat (hereinafter referred to as "unit") of the building or occupancy of any of the said unit will signify that these bye-laws are accepted, ratified and will be complied with.

2. DEFINITIONS

2.1 Act means the Haryana Registration and Regulation of Societies Act, 2012;

2.2 Bye-laws mean the Bye-laws of a Society;

2.3 The word 'ASSOCIATION' or 'SOCIETY' shall mean and include "Green Power Residents' Welfare Association, Sector-75, Faridabad, Haryana-121004";

2.4 Member means a person who fulfils the eligibility criteria for becoming a member of a Society, as specified in the Act and has been admitted as a member of the Society in accordance with Green Power Residency Bye-laws;

2.5 General Body means all the members of the association will constitute the General Body. Every person admitted ordinarily as a member shall be the member of General Body of the Society;

2.6 Elected member means a member of the Society who is duly elected as a member of Governing Body or as an Office bearer or as an Executive Member;

2.7 Financial year means the period commencing from the 1st day of the month of April of a year and ending with the 31st day of the month of March of the following year;

2.8 Governing Body means the committee of Office Bearers constituted or elected by the members of the Association and responsible for the management of day-to-day affairs of the Society;

2.9 Memorandum means the Memorandum of Association of a Society as originally framed and as amended, from time to time, in accordance with the provisions of the Act;

2.10 Rules means the rules made under the Act;

2.11 Family Member means current Flat Owner and his/her immediate family including wife or her husband, children, mother, father.

2.12 Office bearer means and includes the President, Sr. Vice President, Vice President, General Secretary, Joint Secretary, Treasurer or any other member of the Governing Body empowered under the Bye-laws to give directions in regard to the conduct of the business of the Society;



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- 2.13 Governing Body resolution should be passed if at least 40 percent of members entitled to vote, are present and the resolution is approved by 3/5th (three-fifth) of the members so present and voting.
- 2.14 Special resolution means a resolution passed in a meeting of the General Body or The Governing Body, as the case may be, in which at least 40 (forty) per cent of the members entitled to vote are present and the resolution is approved by 3/5th (three-fifth) of the members so present and voting.
- 2.15 Election Committee: Body of members comprising of odd number of members maximum 15 number of members, appointed by Governing Body to conduct elections.

3. HARYANA APARTMENT OWNERSHIP ACT, 1983

The housing complex raised at Site-1 of SLF Anushree Apartments, Sector-75, District Faridabad, and known as the Green Power Welfare Society is submitted to the provisions of the Act Society Registration Act 2012 and Haryana Apartment Ownership act 1983 and the rules made there under.

4. AIMS AND OBJECTS OF THE ASSOCIATION

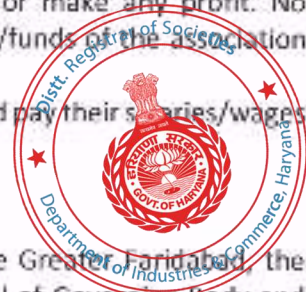
- 4.1 To be and to act as the Association of Unit Owners of Green Power Residency, called the Green Power Residents' Welfare Association, who have filed their respective declarations submitting their units to the provisions of the Haryana Apartment Ownership Act 1983 and Haryana Society Registration and Regulations Act 2012;
- 4.2 To invest or deposit contributions and other money with the Association;
- 4.3 To ensure that the complex is properly managed, maintained and administered in a manner compatible with the standards and expectations of the unit owners;
- 4.4 To provide for the maintenance, repair and replacement of fittings, fixtures, appurtenances or other property requiring maintenance, repair and replacement comprised in common areas and facilities by contribution made by the unit owners, and if necessary, by raising loans for that purpose;
- 4.5 To take stage-wise transfer of the society assets & liabilities from the developer after satisfactory completion/ fulfilments of the deliverables.
- 4.6 To retain and permit use of common facilities to outsiders for display of their products/or temporary commercial setup against an approved charge and appropriate such income for the objects of the Association or its credit to a reserve fund;
- 4.7 To establish and conduct educational, physical, social and recreational activities for the benefit of the unit owners on its own account or jointly with individuals or institutions;
- 4.8 To organize National Festivals (Republic Day, Independence Day and Gandhi Jayanti) at the cost of GREEN POWER RESIDENCY & try to organize Festivals celebrated throughout the nation (English New Year, Holi, Navaratri, Dussehra, Janmastami, Ram Navami, Makar Sankranti, Deepawali, X-mas, EID etc.) through the cultural committee. The GREEN POWER RESIDENCY will sponsor the National Festivals entirely. But in case, if the residents have intended to celebrate these festivals in much bigger way in which substantial cost is involved for the function then GREEN POWER RESIDENCY can seek the cooperation from the residents and ask for donations or contributions or sponsorship for the intended festivals against receipt. The GREEN POWER RESIDENCY will contribute Rs.5000/- for each festival subject to eligibility criteria defined by the General Body/Governing Body, if the residents have intended to celebrate the festival in their own contributions or sponsorships in a bigger way.
- 4.9 Culturally diverse associations/ groups based on different linguistic GREEN POWER RESIDENCY being a mini India. GREEN POWER RESIDENCY recognises the bodies or associations, which are being formed under the provisions of the act of Govt. of Haryana or Central Government & being operated from GREEN POWER RESIDENCY

premises. These bodies /groups / associations can perform regional / cultural / festivals among themselves & place medical camp. Onus of executing, organizing, performing and practising traditional and regional festivals of diversified Indian culture lies with these associations / bodies/ groups to perform and practise traditional festivities in their traditional way. GREEN POWER RESIDENCY can allow these legal bodies to use GREEN POWER RESIDENCY premises for their activities for betterment of society based on some nominal charges decided by Governing Body. However, Governing Body has the power to condone the charges if they are for the betterment of the society. GREEN POWER RESIDENCY can also contribute & support to these groups/ associations for arranging festivals/ occasions/ events that are celebrated across India & medical events subject to eligibility criteria defined by Governing Body. To organize those festivals if financial support of GREEN POWER RESIDENCY sought, then the organizing groups/ associations have to provide income & expenditure statement of the said event and to be presented in Governing Body.

- 4.10 To do all things necessary or/ and otherwise provide for the attainment of the objects specified in these bye-laws and rules framed from time to time;
- 4.11 The Association shall not act beyond the scope of its objects without suitably amending the provisions of these bye-laws for the purpose;
- 4.12 To facilitate better living conditions and create congenial & harmonious relation among members of the association;
- 4.13 To promote mutual respect, cooperation and existence, fraternity, harmony and peaceful coexistence and restoring any dispute among members;
- 4.14 To interact and coordinate with district administration, other government departments, builder/ developer and their representatives for extracting better services within the periphery of the project and provision of services;
- 4.15 To ensure cleanliness and hygienic conditions & greenery in and around complex;
- 4.16 To provide telephone directory to all members for better connectivity & communication;
- 4.17 To frame rules with the approval of Governing Body and after consulting the competent authority to undertake all lawful acts, deeds, matters or things which are considered incidental or conducive to attainment of aims & objects;
- 4.18 The association shall not sell or dispose of its immovable properties without the approval of general body as the case may be;
- 4.19 To ensure all or any part of the complex namely GREEN POWER RESIDENCY from any damage by fire/ loss due to natural calamities and to insure the properties and assets of the society from fire, earthquakes, any natural calamities, strike, terrorist act etc. after fulfilling clauses & be paid from maintenance charges;
- 4.20 To ensure that the all the incomes/ earnings from movable or immovable properties of the association be solely utilized and applied towards the promotion of its aim and objects and no profit thereof shall be paid or transferred directly or indirectly by way of dividends/bonus/profits etc. No member of the association shall have any personal claim on any movable /immovable properties of the association or make any profit. No member shall derive any financial benefits out of the income/funds of the association whatsoever in any manner;
- 4.21 To appoint or terminate or dismiss any employee/contractor and pay their salaries/wages for the services rendered to the association;

5. AFFILIATION:

If any Federation of unit owners association comes up in the Greater Faridabad, the Association may become a member thereof with the approval of Governing Body and pay the sum from time to time payable to such Federation under the rules thereof.



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6.1 The Society shall have a maximum of 152 Main Dwelling unit owners.

6.1 The Society shall have a maximum of 152 Main Dwelling unit owners.

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- 6.6 **Annual subscription fee:** The annual subscription fee per flat shall be Rs.100/- or any amount which is approved by the Governing Body from time to time and which shall be payable between 1st April - 15th April of the calendar year for annual payment.
- 6.7 **GREEN POWER RESIDENCY** reserves the right to get the membership charges billed in the monthly maintenance bill, directly or through its designated agency.
- 6.8 **Any payment or receipt of funds to GREEN POWER RESIDENCY should be acknowledged with receipt mentioning the registration number of the society & the correspondence address.**
- 6.9 **Admission Procedure for Members:** For admission to the association, every flat owner/s
- Must be 21 years of age on the date of admission.
 - Subscribe to aims & objectives of the society
 - Has deposited the membership fees as prescribed in the bye laws of the society
 - Must not be an insolvent and of unsound mind.
 - Must own an Unit/Flat in the Green Power Residency, Sector- 75, Faridabad.
 - For HUF (Hindu Undivided Family) "Karta" of the family will be the member of the society subject to fulfilment of point a to e above.
 - For Companies/ partnership firm owning the dwelling unit, can't be eligible to be a member of a society; however a partner in the partnership member as an individual capacity can be a member of the society subject to fulfilment of Sr. No. 23 of the act and point a to e above.
- 6.10 Although, unit owners will be liable to pay monthly maintenance charges w.e.f May'2019 as decided in the AGM held on 19.05.2019 even if the concerned unit owner is not a member of the association.
- 6.11 For admission to the association, every flat owner/s shall submit a duly filled up form, as specified by the association (reference may be made to Form x of the rules 2012) along with copy of deed of unit, Proof of Identity & Date of Birth proof (Aadhaar Card / PAN Card / Driving License / Voter ID or any other government ID which can prove the identity of the member) for all joint unit owners, photograph/s of all the unit owners and copy of last maintenance bill bearing the name of the owners to the Secretary for incorporating the name in the membership register. In case of purchase of a registered flat deed of unit should be mutated or processed for mutation, documentary evidence for the same to be submitted along with the form.
- 6.12 Membership can't be transferred to the other family members residing with the unit owners. However, they can take part in GREEN POWER RESIDENCY activity with a No Objection Certificate cum authorization certificate submitted by the unit owner/s on his/her/ their behalf along with application duly signed by the owner/s of the flat. This facility is only available to the immediate family members of the flat owner detailed in 2.12.
- 6.13 **Register of Membership :** The association shall maintain at its office a register of its members (as per Form - xii of the society regulation rules 2012) and shall enter into it after the admission of a member or the cessation of membership, as the case may be, the following particulars.
- The name and address of members.
 - The date on which the member was admitted.
 - The date on which a member ceased to be a member
 - Details of family members living with the flat owner & their contact details (Email, Mobile number)
- 6.14 Association shall file the updated list of members with the registrar along with the audited annual account as per Form-xv of the act.
- 6.15 **Cessation of Membership :** Any person admitted as a member shall cease to be a member of the Society in the following terms and conditions.



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- a. If he/she ceases to fulfil the eligibility condition for being admitted as a member as mentioned under Clause No. 6.
- b. Attracts Provisions Contained in Sec 22 of the Act.
- c. Upon indictment and directions for removal by district registrar/Registrar/Registrar General of Societies.
- d. Upon such member found guilty of a financial misappropriation of the funds of the society.
- e. If any member of the society indulge in physical violence with any other member of society then his/her membership will be suspended by Governing Body with Immediate Effect for next two financial years subject to provision of 2 (xxiv) of the act. If the concerned person is a member of the Governing Body; will get removed by special resolution in the meeting of Governing Body.
- f. In the Case of suspension of a member of Governing Body, a new member will be elected for the vacant post by following the election process for the remaining term.
- g. If a member refuses or neglects to comply with any provision of the act his/her membership will be suspended by Governing Body with Immediate Effect subject to provision of 2 (xxiv) of the act.

6.16 Re-admission of Suspended Member: The suspended member will be readmitted by Governing Body based on the payment of any fine imposed/ assessment of the facts which the member presents to the association & merit of the case on case-to-case basis.

7. JOINT UNIT OWNERS

Where an unit has been allotted in favour of two or more persons jointly, they may be jointly entitled to the ownership of the unit and the share of the Association in such case may be issued in their joint names. However, the person whose name stands first in the conveyance deed shall have the right to contest & vote; Provided that such person, whose name stands first in the share certificate, may transfer such right of vote & contest to any one of the other joint owners. The owner/s can transfer the right to contest & vote through joint authorization & No Objection Certificate to any family members residing with him conforming 2.12 of the bye laws for the; provided that person fulfils pt. 6.9 a to d above. Any activity by the authorized member conforming 6.15 of the bye laws also implicate the same to the unit owner/s, who authorized the family member to vote & contest for specific election.

8. DISQUALIFICATIONS

No unit owner shall be entitled to vote on the questions of the election of members of the Governing Body or any office bearer or be entitled to stand for election to such office if he or she is in arrears of any payment to the Association on account of common maintenance charges, utility bill payments, common areas user charges etc. on the first day of the month of the election for more than 60 days.

9. POWERS, FUNCTIONS AND DUTIES OF ASSOCIATION

- 9.1 The Association will take over maintenance and utility services and complete administration of the common facilities and services of the unit complex in a phased manner only and only when all the pending deliverables and snag list of common areas and services offered & promised by the builder/developer/ CRWS executive body in different meetings, brochures, websites, e-mails shall be fulfilled.
- 9.2 After transfer and mutually agreed phased taking over the Association will be responsible for complete administration of the common facilities and services of the unit complex.



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14. QUORUM AND VOTING

- 14.1 The quorum for every general meeting, annual or special, Governing body shall be 40% of the members entitled to vote are present.
- 14.2 There shall be one vote for each member of the Governing Body irrespective of number of unit he own/ authorized to vote. Member can exercise the voting right by the joint member on authority of the member conforming 2.12.
- 14.3 Every vote, be it exercised by the member or by the duly authorized joint member, shall be cast in person. Provided that the member may communicate such authority in favour of the joint member through a letter or electronic mail (member should have earlier registered his E-mail address with the Secretary in writing). Additionally, no voting is permitted by proxy.
- 14.4 Any resolution to be passed in the voting has to fulfil 2 (xxiv) of the act strictly.
- 14.5 One Member can cast only one vote for his unit. If any member has multiple dwelling units through ownership/ authorization, he can cast multiple vote maximum to the number of dwelling units he possess in the Society/ authorized by his family members fulfilling 2.12 of the bye laws for the election of the Governing Body and Executive members.
- 14.6 Governing Body or Election Commission decision in such cases or related matters will be final.

15. ADJOURNED MEETINGS

- 15.1 A General Body/Governing Body meeting of the Association shall be adjourned if the quorum for such meeting is not complete.
- 15.2 Governing Body shall re-convene an adjourned general meeting after a gap of not less than 48 hours and not more than 14 days of the meeting first convened and adjourned.
- 15.3 If no quorum is present in the re-convened meeting, a total of 25% of members present shall constitute the quorum and the matters decided

16. ORDER OF BUSINESS OF GENERAL BODY MEETING & GOVERNING BODY

- 16.1 The order of Business of any general meeting, annual or special, may be decided by the General Body / Governing body as deemed appropriate.
- 16.2 Agenda points for the AGM may be as per the following :
 - 16.2.1 Welcome address by President;
 - 16.2.2 Passing of Minutes of Last Meeting & ATR;
 - 16.2.3 Presentation of Annual Report by outgoing governing body (including points put up by Internal Auditor and any sub-committees);
 - 16.2.4 Consideration and approval of details of accounts, including the Balance Sheet, income and expenditure (Profit & Loss) Statement together with the Auditor's report for the preceding year;
 - 16.2.5 Replies to questions submitted by Members at least 7 days before the meeting (All questions will be included);
 - 16.2.6 Nomination of members as Internal Auditor(s), Standing contracts and Appointments Committee;
 - 16.2.7 Vote of thanks to the outgoing Governing Body (if due);
 - 16.2.8 Any other point permitted by President.

17. SPECIAL RESOLUTION

Any matter required to be resolved through a Special Resolution may be decided at any general meeting, annual or special, Governing Body which is attended by at least 40% of the total members entitled to vote are present and the proposal is approved by 3/5th of the members present and voting.



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CHAPTER III

OFFICE BEARERS OF THE ASSOCIATION THEIR ELECTION AND DUTIES

18. THE GOVERNING BODY OF THE ASSOCIATION, THEIR ELECTION TENURE AND DUTIES

The Governing Body of Association Will Consist of :-

The Governing Body of the RWA / Society shall consist of a total 14 Office bearers and Members as under:

- a) President
- b) Sr. Vice-President
- c) Vice-President
- d) General Secretary
- e) Joint Secretary
- f) Treasurer
- g) Eight Executive Members

20.1 The Election of the Governing Body

20.1.1 The contestants for Office Bearer post must be a member of the RWA;

20.1.3 The outgoing Governing Body shall appoint a new Returning Officer/Election Committee who shall conduct Governing Body elections;

20.1.4 After closing hours on the date of the poll, as per timeline defined by Returning Officer, the Election Committee will tabulate and declare the results and declare the list of the office bearers/executive members & the final result sheet duly signed by 2/3rd (two-third) of Election Committee members will be displayed at notice board of the society.

20.1.5 The association shall file the list of the Governing Body with the District Registrar within a period of 15 (fifteen) days of holding the elections for the General Body in the manner, as prescribed by act.

20.1.6 The information of holding the election of General Body (Governing Body and Executive Members) shall also be sent to District Registrar so as to appoint an observer if he so desires.

20.1.7 The office-bearers of the Governing Body shall not be entitled to any remuneration/fee for rendering services to the society provided that the office-bearers shall be entitled to claim reimbursement of actual travel, and out of pocket expenses incurred by them in connection with any work related to the Association as per rules framed by Governing Body.

20.2 **The Eligibility Conditions:** In addition to the requirements of membership Clause No. 6 & 18 above, the following conditions shall also apply for governing body members.

20.2.1 Any member can be in Governing Body for continuous two terms of maximum of One year each only. Any office-bearer/governing body member after completion of their tenure of continuous two terms must necessary give a break of at least one year before contesting for the elections again.

20.2.2 The Contestant must not be a Director/Owner or related to the Director/Owner of the Maintenance Agencies maintaining the premises of GREEN POWER RESIDENCY or related to them.

20.2.3 In the event, if the Contestant who is the Director/Owner Directors of any of the Maintenance Agencies that qualifies for maintenance of GREEN POWER RESIDENCY



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20.2.4 Any member residing in the society continuously for at least 6 months prior to the date of notification of the election will only be eligible to contest the election.

20.2.5 Any member with direct/indirect interest with the Maintenance agency could not nominate him/herself as member for the Governing Body.

20.2.6 The members desirous of being office bearer shall be willing to spare reasonable time for activities of association.

20.3.1 Upon submission & acceptance of his resignation

20.3.3 If majority of the governing body members express their lack of confidence in any office bearer, for what so ever reasons, they shall be competent to suspend such office bearer from office till such time the matter is considered by governing body for removal or so resolved. Meeting is to be called within 45 days for this purpose.

POWERS AND FUNCTIONS OF THE OFFICE BEARERS (DUTIES)

- a) The President shall execute all responsibilities, right, duties, and obligation as are attached to this office.
- b) He/she shall preside over all the meetings of the Governing Body as well as of the General body, regulate the proceedings of such meetings and declare the results of the voting on a particular item.
- c) To exercise general supervision and guide the overall activities/achievement of aims & objectives of the Society.
- d) Shall sanction all expenditure vouchers for the purchase already approved by Governing Body based on budgetary approval above Rs.5000/- . Expenditure vouchers up to Rs. 5000/- within approved budget will be put up for his/her counter signature after approval by General Secretary.
- e) To sign all the documents/papers relating to all the proceeding of the meeting on behalf of association.
- f) To do all such acts, deeds and things as may be authorized by the Governing Body from time to time.
- g) To allow or disallow discussion on any matter which is not included in the agenda.
- h) To ensure proper & transparent functioning of the Society/Governing Body.
- i) The President will exercise his/her casting vote in case of tie only.
- j) To ensure strict compliance of the provisions of the Haryana Registration and Regulation of Societies Act, 2012 and The Haryana Apartment Ownership Act 1983 and the rules made there under.

- To assist the President in carrying out his duties.
- In absence of the President, to act on his behalf and perform all duties and exercise all the powers of the President.
- To do all such acts, deeds and things, as may be authorized by the Governing



Page 10 of 22

Body.

- d) SVP shall look after all type of dispute pertaining to resolve of any disputes within GREEN POWER RESIDENCY and /or including interpretation of these Bye-Laws. If not able to resolve s/he shall put it to governing body for final settlement. If not resolved by them then s/he should refer it to the General Body, whose decision shall be binding on all parties.

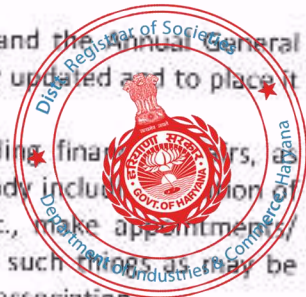
23. VICE PRESIDENT

- a) To assist the President/Sr. Vice President in carrying out his duties.
- b) In absence of the Sr. Vice President, to act on his behalf and perform all duties and exercise all the powers of the Sr. Vice President.
- c) The Vice President shall perform such functions as are assigned to him/her by the governing body from time to time.

23. GENERAL SECRETARY

The power and duties of the General Secretary shall be under:-

- a) He shall be over all in charge of the secretarial functions of the association and the Governing body. (To maintain and conduct the correspondence and to record the proceeding of the meeting.)
- b) To convene and conduct the meetings of the Governing body/ General body, record the proceedings of all such meetings and maintain various registers as are required.
- c) He shall be the custodian of common seals, all such books and records of the association as may be directed by the governing body.
- d) Perform all such duties for the working of the Society as may be assigned by the Governing Body.
- e) To receive, scrutinise and place applications for membership of the Society before the Governing Body and to enter the name of the members, if approved, in the register of members (Hard or Soft copy) under his initials and to intimate the members about the same.
- f) To prepare annual report of the Society and place it before the Governing Body along with audited annual accounts of the Society, for approval to place the same before the General Body in the Annual General Meeting.
- g) To help and assist the President in looking after the complete affairs of the Society and in attaining aims & objects of the Society.
- h) To ensure timely filing of all statutory returns/documents/statutory requirements in the Govt. Offices.
- i) To conduct correspondence on behalf of the Society/Governing Body, to sign letters and papers on its behalf and to ensure that all statutory registers and records are properly kept and maintained.
- j) To prepare before announcing of the date of election and the Annual General Meeting, the list of all the members eligible to vote, duly updated and to place it before the Governing Body.
- k) Execution of all the programmes of the Society/including financial affairs, as directed by general body, on behalf of the Governing Body including recruitment of posts, fixation of salaries/remuneration/allowances, etc., make appointments, engagement of staff, make purchases and do all other such things as may be necessary in the furtherance of the aims & objects of the association.
- l) Approve expenditure vouchers of up to Rs.5000/- incurred as per the approved budget or as prescribed in Bye-Laws and forward them to President for his counter-



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signature. Expenditure vouchers within approved budget above Rs.5000/- will be forwarded by him/her to President for approval.

24. JOINT SECRETARY

- a) Joint secretary shall coordinate with the General Secretary for all the functions of General Secretary and assist the General Secretary in carrying out his duties.
- b) In absence of the General Secretary, to act on his behalf and perform all duties and exercise all the powers of the General Secretary.
- c) Jt. Secretary shall perform such functions as are assigned to him/her by the Governing Body from time to time.

25. TREASURER

- a) To operate Bank Account dealing with the authority of President.
- b) To sign all documents/papers relating to financial matters.
- c) To keep accounts of all financial transactions of the Society and of all the sums of money received and spent by the Society and maintain records of receipts and expenses relating to such matters, and of assets, credits and liabilities.
- d) He/she shall be responsible for management of the finances and accounts of the Association, receipts and expenditure, bank accounts, maintenance of all books of accounts, investment of surplus funds and audit of the accounts of the Association.
- e) S/he shall be responsible for the deposit of all money and other valuable effects in the name and to the credit of the Association, in such depositories, as may from time to time be decided by the Governing Body.
- f) To get the accounts of the Society audited by Chartered Accountant.
- g) In case of any exigency expenditure incurred beyond approved budget will be forwarded by him/her to President for approval and be further be post facto approved by General body for settlement

26. EXECUTIVE MEMBERS

Executive Members shall perform such functions as are assigned to them by the Governing Body from time to time.

CHAPTER IV

26. CONSTITUTION OF BOARD OF MANAGERS OF THE ASSOCIATION, THEIR FUNCTIONS AND POWERS

Not Required.

27. DUTIES, POWERS AND FUNCTIONS OF THE BOARD OF MANAGERS

Not Required.

28. RESTRICTION ON BOARD OF MANAGERS FROM RECEIVING ANY BENEFIT

Not Required.

29. VACANCIES IN THE BOARD OF MANAGERS

Refer Clauses 20.4 for this.



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Shal. Gupta
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30. ENGAGEMENT OF SERVICE PROVIDER, ESTATE MANAGER AND OTHER OFFICIALS

- 30.1 The governing body may engage one or more service providing agencies for performance of such functions or delivery of such services and for such compensation as it may determine for the purpose.
- 30.2 The governing body may engage or employ individuals, on full-time or part time basis in the employment of the Association, for a remuneration or compensation as determined by it, and performance of such duties and services as may be decided by the governing body.
- 30.3 To draft the processes of awarding contract for Annual Maintenance of various facility like Gen Set, Lifts, Fire Extinguisher and out sourcing of other service, getting them ratified by Governing Body and then acting accordingly for awarding the contracts of these services.
- 30.4 The Governing Body may require all or any of the employees of the Association to furnish a fidelity bond

CHAPTER V

31. MEETINGS OF THE GOVERNING BODY

The meetings of the Governing Body will be held as and when required. However, the Governing Body shall meet at-least once in two months.

32. NOTICE FOR THE MEETINGS

A clear notice of 3 days of every such meeting will be given by the Secretary to the members before the date appointed for the meeting. However, the Governing Body may meet at shorter notice, wherever so required, with the consent of at least 50% of its members.

33. QUORUM

The quorum of the meetings of the Governing Body meeting shall be at least 40% of the total members of the Governing Body present & voting. In case quorum is not present, the meeting shall be adjourned to another date for which a proper notice shall be issued. The members present in the adjourned meeting, subject to a minimum of 3 members of office bearers and minimum 4 Executive Members in which the General Secretary shall be present, shall form the quorum for the adjourned meeting.

34. PROCEEDINGS OF MEETINGS

- 34.1 The proceedings of every meeting of the Governing Body will be recorded in the proceedings book (bound) separately maintained for this purpose. Such minutes shall be signed by the entire office bearers/governing body present in the meeting.
- 34.2 The minutes of every meeting of the Governing Body will be placed for information and if required for approval by General Body.
- 34.3 All the office bearers/governing body members is expected to attend all the meetings. Failure to attend three consecutive meetings without explanation or showing any cause for the absence (informing the secretary well in time about the absence will not be counted as absent) will constitutes grounds for removal of the member from the governing body.
- 34.4 The proceedings may be circulated amongst the Governing Body by electronic mode.

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FUNDS, ACCOUNTS AND AUDIT

35. FUNDS - SOURCES OF INCOME OF THE SOCIETY

The source of income of the society shall include funds from and not limited to :

- 35.1 Grants from the Government and local bodies, if any;
- 35.2 Transfers from the savings available in the Capital Account of the GREEN POWER RESIDENCY, if any;
- 35.3 The funds generated through contribution by Members;
- 35.4 Receipts of the Society from other sources;
- 35.5 The sources of income of the society will include receipts on account of membership fee, annual subscription, maintenance charges, rent from property/assets, interest, consultation fees, donations, gifts, grants, etc;
- 35.6 The society can also raise funds through interest-free short-term loans from its members or from scheduled banks on interest with the approval of the Governing Body;
- 35.7 Loan from the scheduled banks on interest will be taken only for the purchase of creation of capital assets and not for meeting any recurring revenue expenditure under any circumstances;
- 35.8 Revenue Surpluses which may form the nucleus of the Reserve Fund;
- 35.9 The Governing Body should also take over IFMS with interest if any, kept in a separate head as sinking fund, collect and maintain additional contributions for the Sinking Fund to ensure the proper Electrical and Equipment Maintenance, Infrastructure Maintenance, Plant and Machinery and any other relevant maintenance which is required for the upkeep of the society. They should defined the policy for utilization of funds and funds should be used as per approved policy by Governing Body.

36. INVESTMENTS

- 36.1 The funds received as referred to above or in any manner shall forthwith be deposited/ invested in a Scheduled Commercial Bank(s) to be decided by the Governing Body from time to time.
- 36.2 In any of the securities specified in Section 20 of the Indian Trust Act, 1988;
- 36.3 In any other manner as resolved by the Governing Body.

37. DEPLOYMENT OF FUNDS

The income and property of the Association shall be applied solely towards promotion of the aims and objects of the Association as set forth in the Memorandum of Association and no portion thereof shall be paid or transferred, directly or indirectly, to the members of the Association.

38. MAINTENANCE OF THE ACCOUNTS

- 38.1 The Bank accounts of the Society will be jointly operated by such members/ office bearers as may be decided by the Governing Body from time to time;
- 38.2 All assets and funds will belong to the Society and vest in the society;
- 38.3 All receipts shall normally be collected through bank instrument (DD/Pay Order/Cheques/Bank Transfers/RTGS) except annual subscription for any collection for social events;
- 38.4 All payments by the Society shall also be normally made through bank instruments however, payment up to Rs.2000/- can be made in cash with post facto approval by



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- Governing Body. In case the need arises for cash payment more than this the governing body may determine the limits subject to approval by Governing Body;
- 38.5 The General Secretary/Treasurer shall maintain a passbook in respect of every member (unit owner) in electronic or physical form in which entry will be made towards contribution paid by member towards common expenses and share of assessment and other dues. The statement of account shall be made available to member on demand;
- 38.6 The Treasurer of the Society will be responsible for keeping and maintaining proper books of accounts i.e. cash book, ledger etc. as required under the Income Tax laws and/or any other authority including the Institute of Chartered Accountants of India, at its Registered Office with respect to all sums of money received and spent by the Society and the assets and liabilities of the Society.
- 38.7 The Treasurer can keep with him/her upto Rs.2,000/- to meet emergent expenditure. Any excess money shall be deposited in bank within one week's time.
- 38.8 The books of accounts of the Society shall be open to inspection during the business hours by the Registrar General, Registrar, District Registrar or any officer authorized by them and by any member of the Society as per the bye-laws.
- 38.9 Any Member can access the Books of Accounts or any other financial reports during office working hours by giving advance notice of 3 (three) days by paying an inspection fees of Rs.100/= (Rupees one hundred) per member.
- 38.10 Bank account of the association will be operated jointly under the signatures of any two (out of three signatories in bank) i.e. President/Sr. Vice President/Vice President/General Secretary/Treasurer/Jt. Secretary.
- 38.11 No one unless specially authorized by the Governing Body will keep any cash in hand.

39. ANNUAL ACCOUNTS

- 39.1 The accounts will be closed on the 31st March of any financial year. An annual financial account of the association shall be made as soon as possible but in any case on or before 30th June of next financial year;
- 39.2 The annual account shall contain (i) profit and loss account; (ii) the receipt of expenditure of previous financial year; (iii) a summary of the property and assets and liabilities of the common areas and facilities of the association. (iv) Detailed Report of Top 5 Expenditure of the Year with the reason, objective or purpose of expenditure (v) Details of Collections and Expenses of all the events organized during the tenure from time to time and the details should be made available within 30 days from the date of each event.
- 39.3 Any Member of Society can view the details during office hours with prior notice of 3 (three) days in advance by paying an inspection fee of Rs.100/= (Rupees one hundred) per member.
- 39.4 Governing Body can also share such details with General Body Members as and when it is ready to bring absolute transparency in their functioning.

40. AUDIT OF ACCOUNTS

- 40.1 The Annual Accounts shall be submitted for Audit by a Chartered Accountant engaged by the governing body, such Chartered Accountant not being a member of the Association or a close relative of any of the governing body member.
- 40.2 The annual accounts of the society will be signed by President, Secretary/Treasurer of the Society;
- 40.3 The Auditors shall audit the accounts of the Association and submit their report thereon;
- 40.4 The audited financial statement shall be open to inspection by any member of the Association during office hours and in the office of the Association and a copy thereof shall be placed on the Notice Board at least seven days before the Annual General Meeting for its approval and adoption not later than 31st of August of the year;



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- 40.5 Every financial statement shall be accompanied by a complete list of the unit owners, along with the amount receivable from or payable to the members;
- 40.6 A copy of the Annual Audited Accounts shall be filed in the office of the District Registrar in the form and manner prescribed under the relevant law;
- 40.7 Concurrent audit, if any, shall be undertaken by members nominated for the same by Annual General meeting;
- 40.8 The accounts duly audited together with a report from the governing body will be presented in the annual Meeting of the Governing Body for its approval.

41. APPOINTMENTS OF AUDITOR AND RELATED MATTERS

- 41.1 The Governing Body will appoint a chartered accountant of repute, who shall not be a member of the association or relative of any governing body member for auditing the accounts and filing of income tax return of the society for each financial year, at such remuneration as may be determined by the Governing Body.
- 41.2 The auditors shall have access to the books of accounts and vouchers of the Society and entitled to call for and examine any document covering the complete scope of association.

CHAPTER VII

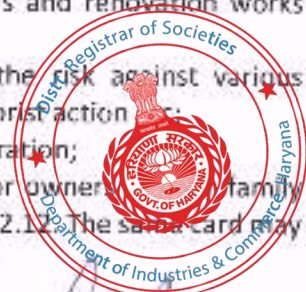
42. MORTGAGES

- 42.1 A member, who mortgages his or her dwelling unit in favour of any financial institution, shall notify the Association through its General Secretary, the name and address of his or her mortgagees and the Association shall maintain such information in a book titled as "mortgages of the units"
- 42.2 The Association may, at the request of the Mortgagee of a unit, report any unpaid assessments or charges due from the owner of such unit.

CHAPTER VIII

43. MEMBERS TO CONTRIBUTE FOR VARIOUS CHARGES

- 43.1 The Association shall determine the rates of various charges to be contributed by the members on account of all or any of the following:
- 43.1.1 Charges for the operation & maintenance of common areas and facilities e.g. security, cleaning, garbage disposal, horticulture, electrical and plumbing services, AMCs of various facilities e.g. lifts, Gen-sets, CCTV system, Intercom etc.;
- 43.1.2 Charges for use of common facilities e.g. Gym, Indoor games, lounge, terrace with lounge, common kitchen area, lawns, etc.;
- 43.1.3 Utility charges i.e. electricity bills of individual dwelling units (if the power is being supplied to the Association Complex from a HT Connection), water charges etc.;
- 43.1.4 Contribution to the Reserve Fund for meeting major repairs and renovation works required for the common areas of the complex;
- 43.1.5 Costs towards payment of insurance premium to cover the risk against various eventualities e.g. fire, earthquakes, calamity, strike by any terrorist action etc.;
- 43.1.6 Any taxes or fees or cess payable to the local Municipal Corporation;
- 43.1.7 Preparation of non-transferrable biometric Photo ID Card for owners and family members for usage of club/ recreational facilities as detailed in 2.12. The same card may be used as photo ID card issued by GREEN POWER RESIDENCY.
- 43.1.8 Any other charges not specifically covered under the above.



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- 43.2 All expenditure incurred on the maintenance of the common facilities and services of the housing complex shall be recoverable from and payable by the members as decided by the Governing Body.
- 43.3 All members shall pay the maintenance charges and electricity charges/bills etc. within the stipulated time frame. Payments made after due date shall be subject to 18% penal interest on the said amount upto the period of one month and thereafter additional penalty charge Rs.50/- per day will be also charged until the dues are cleared.
- 43.4 Tenants have to pay item specific usage charges of club/ recreational facilities & issuance of separate photo ID card to getting access for the same. Rate should be determined by the Governing Body.

CHAPTER IX

44. MEMBERS RIGHTS AND OBLIGATION

44.1 Rights

- 44.1.1 Each member of the Society shall have the right to inspect the books of accounts, books containing the minutes of proceedings of the Annual general meeting, Governing Body meeting and register of members of the society on any working day by giving a notice of Three(3)days after depositing Rs.100/-;
- 44.1.2 A member of the association shall be entitled to participate in general meeting, functions of the association;
- 44.1.3 Each member shall have a right to cast his/ her vote at the elections of the Governing Body and can also stand for election of the Governing Body subject to fulfilment of clause 6;
- 44.1.4 Each member shall have the voting right and have one vote at the meeting of the association but any member whose subscription has remained in arrears before holding the Annual General Meeting or extraordinary general meeting shall not be entitled to exercise the voting right at any of the meetings;

44.2 Obligations

- 44.2.1 All the members (unit owners, tenants) of the Society shall be bound by the rules and regulations of the Society as contained in its byelaws and amended from time to time;
- 44.2.2 **Obligation to timely payment of all charges and contributions:** Each and every owner of an unit in the Society, shall be under obligation at all times to pay the common maintenance charges and user charges as determined by the Association from time to time and the utility bills in respect of electricity, sewerage and water consumption without being in arrears;
- 44.2.3 **Contribution to the Sinking Fund** for meeting major repairs or replacement of equipment of capital nature and renovation works required for the common areas of the complex as decided by Governing Body;
- 44.2.4 Any taxes or fees or cess payable to the local Municipal Corporation / State Government / Central Government;
- 44.2.5 Any other charges not specifically covered under the above but felt necessary by Governing Body.
- 44.2.6 If any of the dwelling unit owner is not available in the society for any of time, they are expected to make arrangements for timely payment of monthly bills, dues, fees, etc. either by depositing sufficient advance amount with the Association or shall leave post-dated cheques with their neighbours with the governing body members with an intimation to the secretary.



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Superintendent

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Shridul - Secretary

45. OBSERVANCE OF DUTIES AND RESPONSIBILITIES

The unit owner and/or resident including tenants shall be obliged to observe their duties as set out herein and obligations issued by Association in the form of Guidelines/ Circular / Notice / Do's & Don'ts etc. from time to time and any violation of the same shall make them liable to fine as may be determined by the Association at its meeting or by any special committee appointed by them in this regard.

46. ENFORCEMENT OF OBLIGATION

In case any unit owner is in arrears of payment of his obligations for a period of 30 days or more, the governing body shall be competent to take all measures for the recovery of such arrears of the monthly maintenance charges, or monthly utility bills (electricity and related charges) and other user charges, including coercive measures by taking recourse to disconnection of electricity and water supply to the dwelling unit, blocking its sewage out flow, and denial of access to the use of common facilities including the lifts.

47. MAINTENANCE AND REPAIR OF INDIVIDUAL DWELLING UNITS

47.1 Every unit owner shall promptly undertake the maintenance and repair work in respect of any installation within his own dwelling unit, which if not attended promptly, may have an adverse effect on the dwelling units of other members or the common areas of the society;

47.1 Should there be caused any damage or injury to the common areas or facilities in the process of internal works in any unit, the owner shall either get the same restored to its condition at his own expense or be liable to pay and reimburse the expenditure incurred by the Association on getting such damages repaired.

47.2 The unit owner 'A' shall either reimburse and compensate the owner of another unit 'B' for any damage or injury caused to his (B's) unit in the process of repairs carried out in his (A's) unit or get the same repaired at his cost to the satisfaction of the affected owner. In case of dispute, the matter is to be resolved by Sr. Vice President of the association.

47.3 No unit owner shall make any structural modifications or alteration in his/her unit or installations located within the unit without previously notifying the Association in writing, through the General Secretary, and securing prior permission of the Board for such modifications and alterations.

47.4 The governing body shall respond to any request received under 47.5 above at the earliest but not exceeding 30 (thirty) days. In case no response is received to the contrary within 30 (thirty) days, it shall be deemed that there is no objection to the proposed modification, alteration or installation.

47.5 The unit owner is liable to pay a refundable deposit of Rs.5000/- (Rupees Five Thousand) towards any sort of renovation work carried by them inside their dwelling unit. In addition to the above, the unit owner shall deposit a minimum of Rs.1,000/- (Rupees One Thousand) towards the usage of common facilities of the societies while renovation is carried out inside their flat or the charges as decided by the Governing Body.

47.5.1 Provided that the elevation and engineering structure of the building will not be changed under any circumstances.

47.5.2 Provided further that any change affecting any other unit will not be permitted.

47.6 The terms & conditions of contract with the service provider for maintaining the premises shall be decided by Governing Body.

48. USE OF INDEPENDENT UNITS AND LIABILITY FOR VIOLATION

48.1 All the units shall be used for residential purposes only as permissible under the regulations of competent authority of government / GREEN POWER RESIDENCY from

time to time. Any commercial activity in residential tower/ common areas is strictly prohibited.

- 48.2 Bachelors in single or in a group can't be put as tenant in the society but in case if there is any case then owner of the flat should be held responsible for their conduct. Police verification of tenants from the local police station is mandatory.
- 48.3 Foreign national can't be put as tenant in the society. -

49. USE OF COMMON AREAS AND FACILITIES AND RESTRICTED COMMON AREAS AND FACILITIES

- 49.1 No member shall place or cause or allowed to be placed any furniture, packages or objects of any kind in the lobbies, vestibules, stairways, elevators and other areas of the GREEN POWER RESIDENCY Complex and facilities of a similar nature, both common and restricted, that may impede or expected to impede the smooth movement of persons or goods or may cause inconvenience to the Residents'.
- 49.2 The common or restricted areas shall not be used for any purpose e.g. storage or construction work, except where specifically authorized by the Association, other than for normal transit and circulation.
- 49.3 The GREEN POWER RESIDENCY Complex has provision for elevators earmarked for the use of unit owners/ tenants and their guests and service elevator earmarked for freight service or auxiliary purposes.
- 49.4 Owners, tenants and their workmen shall use the freight or service elevator only for carrying any packages, merchandise or construction material or any such other objects which may affect the comfort or well being of the passengers of the elevators dedicated for the use of owners, occupants and guests. The users shall exercise due care and caution and ensure that no damage or defacing is caused to any of the lifts during the use thereof

50. RIGHT OF ACCESS AND ENTRY IN EMERGENCY AND NORMAL CONDITIONS

Every unit owner shall ensure unhindered access to the authorized persons or any workers/contractors employed by the association to attend to any emergent situation arising from electrical installations, plumbing installations or any such thing, which might threaten the safety of their unit or any other unit whether in his presence or absence. In his absence, he will be contacted and appropriate action taken in the presence of /office bearer and minimum 2 (two) executive body members from that tower.

51. CODE OF CONDUCT FOR UNITS OWNERS

- 51.1 To ensure that his/ her/ their unit is not used for any unlawful, illegal, immoral or anti-national activity.
- 51.2 To ensure that his/ her/ their unit is not used for any commercial activity.
- 51.3 To ensure that the laws, rules and instructions of the police and or any law enforcement agency regarding verification of their tenants are duly complied with and obtained within 30 (thirty) days and the copy of same is submitted with General Secretary of Association. The owners must inform about the letting out of their flat before the tenant moves in and apply for a NOC.
- 51.4 All the unit owners and/ or residents including the tenants of the Housing Complex and their domestic help, if any, are obliged to maintain at all times a wholesome family environment in the complex.
- 51.5 No owner or resident of the Complex shall post any advertisement or notice of any kind in or on the building except as authorized by the Association.



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Supriya 21/11/21

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- 51.6 The guests, visitors and maintenance workers etc. are required to sign the visitor's register at the entrance gate, failing which entry to the Housing Complex may be denied by the Security staff.
- 51.7 Consumption of alcohol or any intoxicants etc. and smoking by the residents and /or their guests and domestic staff in the common areas, and in the lifts is strictly prohibited.
- 51.8 The flat owners/tenants are not allowed to keep the pet with him/her/them in the dwelling units/society premises.
- 51.9 Maintenance agency should take defined action to keep away stray dogs/ pigs, monkeys and other animals from Society complex preferably in coordination with MCF or any NGO organizations or any suitable agency.

51.10 The Flat Owners/Residents shall :

- i. Contain and confine the noise level caused by any construction, maintenance and repairs in any unit or use of musical instruments, radios, television, amplifiers and any other devices so as to ensure that other residents are not disturbed in peaceful enjoyment of their privacy. No loud music is allowed beyond 10 pm. On violation of the same Police action will be initiated as deemed fit. However during celebration of festivals, rituals, marriage, family functions in common areas the time limit is extended upto 11 pm with the sound level below 40 decibel.
- ii. No construction activity is allowed from 6 pm to 9 am (next day) unless it is in exigency.
- iii. Not allow throwing or dropping of any garbage or trash or litter from the windows or balconies.
- v. Not lay or install or cause to be laid/ installed any wiring for electrical or telephone installation, television antennae, machines or air conditioning units, etc. on the exterior of the Complex building or that protrude through the wall or the roof of the building except as authorised by the Association.

It can be done only if it is approved by the Governing Body as per existing guidelines.

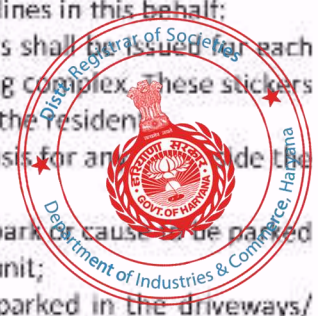
51.11 The unit owner and/or resident including tenants shall abide by the Guidelines/ Circular / Notice / Do's & Don'ts etc. issued by Association from time to time.

51.12 All owners shall obtain a No Objection Certificate (NOC) from the Association before effecting sale of an unit or putting it for rent. NOC will be issued only after all dues to the Association are settled. In the absence of not complying, the buyer or tenant of the Flat shall not be allowed to shift in the campus of GREEN POWER RESIDENCY, unless otherwise, the dues are cleared.

52. PARKING OF VEHICLES

The unit owners/ residents/ tenants shall follow the following guidelines in this behalf:

- 52.1 Car parking slots are earmarked for each unit. Parking stickers shall be issued for each unit for regular overnight parking of vehicles inside the building complex. These stickers will be displayed on the left of front windscreen of the cars of the resident.
- 52.2 Entrance and parking of any additional vehicle on a regular basis for any vehicle inside the Complex will be regulated by the governing body;
- 52.3 It is expected that every owner/ resident & their visitors shall park or cause to be parked his cars at the assigned parking slot specifically allotted to an unit;
- 52.4 No owner or resident shall park or allow his vehicles to be parked in the driveways/ pathways demarcated for the movement of vehicles in the basement, or park two-wheelers in the area earmarked for four-wheelers;



Signature
Deputy
Bind

Signature

Signature
Signature
Signature

- 52.5 All the unit owners and residents are expected to ensure that their vehicles or taxis are not parked in the main driveway except for drop and pick-up facility of the passengers;
- 52.6 If any vehicle is found to be parked in the wrong location or over speeding, GREEN POWER RESIDENCY or its empowered maintenance agency will impose a fine of Rs. 500/- (Five hundred only) for each occasion per day Further, the vehicle of repetitive offenders will not be allowed in the society premises and the decision of RWA in this regard shall be final and binding.
- 52.7 If any vehicle is found to be parked and stranded in the wrong location for more than 5 days, the vehicle will be arranged to be towed away outside the complex to the nearest PS & Sticker for that particular vehicle will be disabled. Expenditure incurred in this regard will be recoverable from the owner. Sticker will be issued after submission of the payment & fine.
- 53. DOMESTIC STAFF (SERVANTS, DRIVERS, CLEANERS, COOKS AND DOMESTIC WORKERS, ETC.)**
- 53.1 Unit owners/ residents are required to get their servants, drivers, cleaners, cooks and domestic workers (henceforth to be referred as the domestic staff) employed by them verified by the local police and to submit a copy of the police verification to the governing body. Entry to the Housing Complex may be denied to the domestic staff not verified by the local police. The conduct of domestic staff employed by owners/residents shall be ensured by respective owners/residents and any mishap created by the domestic staff to the society or other members shall be the sole responsibility of owners/residents only.
- 53.2 The names and other particulars of the servants, drivers and domestic staff employed by the residents should be supplied by them to the Governing Body/Security-in-charge. The Governing Body/Security-in-charge shall issue identity cards to them that must be carried by the domestic staff while in the Complex. On termination of the employment of any member of their domestic staff, it shall be the responsibility of the owner/resident to inform the Governing Body/Security-in-charge and to return the identity card.
- 53.3 The domestic staff is prohibited from using the common areas for recreation, assembly or sitting unless accompanied by the residents. Domestic staff will use only the areas earmarked for them in the Complex area.

CHAPTER X

54. COMPLIANCE

These bye-laws are set forth to comply with the requirements of the Haryana Registration and Regulation of Societies Act, 2012 read with the provisions of Haryana Apartment Ownership Act, 1983 and the rules framed there under. In case of any inconsistency between these byelaws and the provisions of the said Acts, the provisions of the Acts will apply.

54. SEAL OF THE ASSOCIATION

The Association shall have a common seal which shall be in the custody of the General Secretary/Jt. Secretary and shall be used only under the authority and resolution of the governing body and every deed or instrument to which the seal is affixed shall be attested for or on behalf of the Association by two members of the governing body and the General Secretary/Jt. Secretary or any other person authorized by the governing body on that behalf.



Handwritten signatures and initials in blue ink are visible at the bottom of the page, including names like 'Suresh', 'Anand', and 'Hridal'.

55. AMENDMENT OF THE MEMORANDUM AND/OR BYE LAWS OF THE ASSOCIATION

- 55.1 The governing body shall have the for framing, amendment and modification of any of these bye-laws and Memorandum of Association or change of Name.
- 55.2 Based on the interpretation of the provisions of the bye laws,, the Governing Body is empowered to amend, alter or delete any of the Rules as well as Memorandum of Association, whenever necessary under Section 26 of Haryana Registration and Regulation of Societies Act, 2012 and under Section 56 of The Haryana Apartment Ownership Act 1983 as applicable to the State of Haryana.
- 55.3 The Memorandum of Association or the Byelaws may be amended through a special resolution passed in a general meeting of the Association by 3/5th of the members present and voting conforming Clause 2.14 of byelaws.
- 55.4 Provided that where a member is unable to attend the meeting in person for medical treatment/ exigency, he may communicate his comments to the amendment to the memorandum or the Bye-laws, as the case may be, by electronic means or letter at least one day prior to the date of the meeting, which shall be read out by the General Secretary in the meeting, but not be used for voting & decision making.

55. AMALGAMATION OR DISSOLUTION OF THE ASSOCIATION

- 55.1 The Association of Unit Owners of the GREEN POWER RESIDENCY is a body corporate with perpetual succession and not likely to be dissolved.
- 55.2 The association, may however, amalgamate itself with any other Society with identical aims and objects through a special resolution passed in a general meeting of the Association and approved by at least 3/5th of the members present and voting.


(K.M. Mishra)


(G.L. Meena)


(S.K. Padhi)


Sanju Bisla


Ashok Mehta


Sejan M


Haidul


(Haidul Singh)


(K.K. Dharma)


R.K. Yadav


Chh. Raghav


(Seema Verma)

